

the Revised Employment Agreement, Settlement Agreement and Addendum, and obtain an "award" of all compensation Selma has paid under each contract. (Comp., p. 10:21-26.) Declaratory relief is unavailable to redress these past wrongs.

Furthermore, a court may refuse to grant declaratory relief if it determines that such relief "is not necessary or proper at the time under all the circumstances." (Code Civ. Proc., § 1061.) The court takes judicial notice of the pleadings in a prior action pending between the same parties addressing the same documents, entitled *Fernando Santillan v. City of Selma*, Superior Court Case Number 25CECG04748 (Prior Action), filed in this court on October 8, 2025, by Santillan as the plaintiff and Selma as the defendant. Selma may pursue the relief it seeks in the Prior Action. Therefore, declaratory relief is unnecessary.

In sum, Selma seeks redress of alleged past wrongs in its Complaint. But declaratory relief is unavailable for such purposes. (*Lee v. Silveira, supra*, 6 Cal.App.5th at p. 549; *Canova, supra*, 150 Cal.App.4th at p. 1497.) Nor is declaratory relief necessary. The court concludes Selma cannot show a probability that it will prevail on its claims for declaratory relief.

Conclusion

In summary, the court finds Santillan meets his burden to show the Complaint arises from protected activity. The burden then shifts to Selma to demonstrate a likelihood of prevailing on its claims for declaratory relief, which it cannot do. Therefore, the court grants Santillan's anti-SLAPP motion and strikes the Complaint, without prejudice to Selma asserting its claims in the Prior Action.

Demurrer

In light of the above, the court need not reach the merits of the demurrer.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/11/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Arambula-Garcia v. Servellon et al.***
Superior Court Case No. 23CECG04857

Hearing Date: May 12, 2026 (Dept. 501)

Motion: Petition to Compromise Claim

Tentative Ruling:

To deny, without prejudice. In the event that argument is requested, both petitioner Blanca Marisela Arambula-Garcia and plaintiff Francisco Arambula Velazquez are excused from appearing.

Explanation:

Petitioner Blanca Marisela Arambula-Garcia ("petitioner") seeks an order compromising the claim of plaintiff Francisco Arambula Velazquez.

Upon review of the Petition, it appears that petitioner seeks to establish a court-supervised special needs trust. (Attachment 10c, Attachment 18(b)(4).) The purpose of the trust appears to be to enable future public assistance. This court in a civil proceeding will not retain jurisdiction of such trust supervision. Accordingly, petitioner must show that she has first filed with the Probate Division to establish the supervised trust to comply with California Rules of Court, rule 7.903. The Probate Division provides the requisite ongoing court supervision of the trust. Once there is an approved probate petition, petitioner may refile for approval to fund the trusts through an order of compromise of claim in this civil matter.

For the above reasons, the Petition is denied, but without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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